

Stone v. Theed.—In *Stone v. Theed* (*b*), Lord Thurlow held that *annual* rents only were applicable. In *Allan v. Backhouse* (*c*) Sir T. Plumer considered that the trustees might sell or mortgage, and that the tenant for life and remainderman must contribute in the usual proportions, and this decision was affirmed on appeal by Lord Eldon (*d*). In *Shaftesbury v. Marlborough* (*e*) Sir J. Leach observed upon the conflict between the preceding cases, and followed the authority of Lord Thurlow. [In *Re Barber's Settled Estates* (*f*), the authority of *Allan v. Backhouse* was conceded without argument.]

The decisions in *Playters v. Abbott* (*g*) and *Townley v. Bond* (*h*), must be viewed as resting only upon the special wording of the instruments which were under consideration.

Greenwood v. Evans, &c.—In *Greenwood v. Evans* (*i*), *Jones v. Jones* (*j*), *Reeves v. *Creswick* (*a*), and [*369] *Ainslie v. Harcourt* (*b*), the trustees were empowered to levy the fines from the *rents, issues, and profits*, or by *mortgage*, and the Court, as we have seen, apportioned the burthen amongst the successive tenants, according to their enjoyment.

(*b*) 2 B. C. C. 243; see the case stated from Reg. Lib. with some remarks, in *Jones v. Jones*, 5 Hare, 451, note (*a*); and see *Metcalf v. Hutchinson*, 1 Ch. D. 591.

(*c*) 2 V. & B. 65.

(*d*) Jac. 631. [A full copy of Lord Eldon's judgment will be found in the *Law Magazine*, vol. 26, p. 112.]

(*e*) 2 M. & K. 111.

[(*f*) 18 Ch. D. 624.]

(*g*) 2 M. & K. 97.

(*h*) 2 Conn. & Laws. 393.

(*i*) 4 Beav. 44.

(*j*) 5 Hare, 440.

(*a*) 3 Y. & C. 715. It is stated in the report that "there were no funds provided for the purpose of renewal by the testator's will;" from which it might be supposed that the will was altogether silent upon the subject, but Mr. Shapter, Q. C., who had occasion to consult the Reg. Lib. obligingly furnished the author with the

following extract from the will: "It shall be lawful for my said trustees, and the survivor of them, and the heirs, executors, administrators and assigns respectively of such survivor to renew, or use their or his endeavours to renew, the leases for the time being of such part of my said estates as shall be accustomably renewable from time to time and as often as occasion shall require, and for that purpose to make such surrenders of the then leases, or any renewed leases, as shall be requisite and necessary in that behalf, and *by and out of the rents, issues, and profits*, of the premises, the leases whereof may be so renewed, or by *mortgage thereof*, to raise so much monies as shall be sufficient for paying the several renewal fines and other necessary charges for such renewals."

(*b*) 28 Beav. 313.